



CHAPTER lxviii.

An Act for incorporating and conferring powers on the A.D. 1911.
Sidmouth Gas and Electricity Company.

[18th August 1911.]

WHEREAS by the Sidmouth Gas Order 1874 (in this Act referred to as "the Order of 1874") John Dunning and his heirs or assigns were authorised to supply and sell gas within the parishes of Sidmouth Salcombe Regis and Sidbury in the county of Devon and to raise share capital not exceeding fifteen thousand pounds :

And whereas the Sidmouth Gas Company Limited (in this Act called "the limited company") were in the year one thousand eight hundred and eighty-six incorporated under the Companies Acts 1862 to 1883 for the purposes (amongst others) of manufacturing supplying and selling gas in the parishes aforesaid and of adopting and carrying into effect an agreement for the sale and purchase of the undertaking authorised by the Order of 1874 :

And whereas the sale and purchase contemplated by the said agreement was duly completed and the undertaking authorised by the Order of 1874 became vested in and has since been carried on by the limited company :

And whereas the share capital of the limited company at present consists of—

Nine thousand pounds divided into nine hundred fully paid up ordinary shares of ten pounds each entitled to a maximum dividend at the rate of ten pounds per centum per annum ;

Three thousand pounds divided into three hundred fully paid up "A" preference shares of ten pounds each
[Price 2s. 6d.] A 1

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entitled to a preferential dividend at the rate of five pounds per centum per annum and to a maximum dividend of seven pounds ten shillings per centum per annum ;

Three thousand pounds divided into three hundred fully paid up "B" preference shares of ten pounds each entitled to a dividend of four pounds ten shillings per centum per annum :

And whereas the limited company have raised by the issue of debentures the sum of two thousand pounds entitled to interest at the rate of six per centum per annum and the sum of three thousand pounds entitled to interest at the rate of four pounds ten shillings per centum per annum :

And whereas it is expedient that the limited company be dissolved and reincorporated with further powers and that the company so reincorporated should be authorised to improve and extend their works and mains and to supply gas within the limits defined by this Act :

And whereas it is expedient that the Company be empowered to supply electricity for public and private purposes within the parish and urban district of Sidmouth :

And whereas it is expedient that additional capital should be provided for such purposes and that such further powers should be conferred upon the Company and such further provisions enacted as are contained in this Act :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

Short title.

1. This Act may be cited as the Sidmouth Gas and Electricity Act 1911.

Application
of Electric
Lighting
Acts.

2. This Act shall be deemed to be a special Act within the meaning of the Electric Lighting Acts 1882 to 1909 and the Electric Lighting (Clauses) Act 1899 so far as the provisions of those Acts and the schedules thereto are applicable to or

incorporated with this Act (which Acts and the schedules thereto are hereinafter referred to as "the principal Acts").

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3. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely):—

Incorporation of
general Acts.

The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital) Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts;

The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement);

The Gasworks Clauses Acts 1847 and 1871 Provided that section 13 of the former Act shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section; and

The provisions of the schedule to the Electric Lighting (Clauses) Act 1899 except sections 5 and 23 thereof.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act—

Interpretation.

The expression "the Company" means the Sidmouth Gas and Electricity Company incorporated by this Act;

The expressions "the gasworks" and "the gas undertaking" respectively mean and include the gasworks and works connected therewith by this Act vested in or authorised to be continued and maintained by the Company and any improvement and extension thereof which they may make or construct under the powers of this Act and the lands buildings estate right title property and privileges

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and effects and the undertaking of the Company for the supply of gas as authorised by this Act;

The expression "the electricity undertaking" means the undertaking of the Company for the supply of electricity as authorised by this Act; and

The expression "the undertaking" includes the gas undertaking and the electricity undertaking by this Act authorised.

REINCORPORATION.

Reincorporation of Company.

5. As from the first day of January one thousand nine hundred and twelve (in this Act referred to as "the date of transfer") the limited company shall be dissolved and the several persons who immediately before the date of transfer were members of that company and all other persons who have already subscribed to or who shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a company for the purposes hereinafter mentioned and shall be and are hereby reincorporated by the name of "The Sidmouth Gas and Electricity Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act and of the undertaking.

General purposes of Company.

6. The Company shall be established for the purpose of manufacturing storing and supplying gas for lighting heating motive power and other purposes within the limits of supply as defined by this Act and for the purpose of establishing a station or stations for generating and supplying electricity within the area of supply as defined by this Act and may produce purchase store sell dispose of and deal in gas coke patent fuel tar pitch asphaltum ammoniacal liquor sulphate of ammonia and all other products or materials resulting from or used in the manufacture of gas and may generate and supply electricity and generally may carry on any business usually carried on by gas companies or companies for the supply of electricity or which is or may become incidental thereto and may carry the powers of this Act into execution.

Present property of

7. Subject to the provisions of this Act all the lands gasworks erections buildings rights and easements which imme-

diately before the date of transfer were vested in the limited company or any person in trust for them or to which the limited company were in anywise entitled and all mains and pipes plant apparatus stock effects matters and things which have been by them purchased provided laid down erected or placed in any place or house within the limits of supply or which immediately before the date of transfer were the property of the limited company and all moneys securities credits effects and other property whatsoever which immediately before the date of transfer belonged to the limited company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the limited company and immediately before the date of transfer in force shall be and the same are hereby transferred to and vested in the Company as from the date of transfer to the same extent and for the same estate and interest as the same were previously to the date of transfer vested in the limited company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

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 limited com-
 pany vested
 in Company.

8. Subject to the provisions of this Act as from the date of transfer the memorandum and articles of association of the limited company shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and requirements of any Act which applied to the limited company and the members thereof as such but nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said memorandum and articles of association incurred before the date of transfer but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the limited company if this Act had not been passed.

Memoran-
 dum and
 articles of
 association
 of limited
 company to
 be void.

9. Except as is by this Act otherwise expressly provided everything before the date of transfer done or suffered by or with reference to the limited company or the members thereof as such shall be as valid as if the Company had not been incorporated

Saving of
 existing
 rights and
 liabilities.

A.D. 1911. — and the memorandum and articles of association had not been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said memorandum and articles of association were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and its shareholders and property shall to all intents and purposes represent the limited company and the members thereof as such and the property of the limited company as the case may be and the generality of this enactment shall not be restricted by any of the other sections and provisions of this Act.

Contracts
prior to date
of transfer
to be binding.

10. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the date of transfer by to or with the limited company or any trustees or persons acting on behalf of the limited company or by to or with any other person to whose rights and liabilities they have succeeded and in force at the date of transfer shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the limited company or any trustees or persons acting on behalf of the limited company the Company had been a party thereto.

Actions &c.
not to abate.

11. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the limited company or any member thereof in relation to the affairs of the limited company or to which the limited company or any member thereof in relation to such affairs were parties immediately before the date of transfer but such action or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the limited company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the

matters aforesaid in all respects substituted for the limited company and its members respectively. A.D. 1911.

12. Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the limited company were vested immediately before the date of transfer and who (being authorised so to do) before the date of transfer entered into any bond covenant contract or engagement on behalf of the limited company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement. Indemnity.

13. From and after the date of transfer and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the limited company immediately before the date of transfer were subject and shall indemnify the members directors officers and servants of the limited company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf. Company to satisfy liabilities of limited company.

14. All gas rents and sums of money which immediately before the date of transfer were due or accruing to the limited company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act. Recovery of gas rents &c.

15. All persons who immediately before the date of transfer owed any money to the limited company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the date of transfer were due or recoverable from the limited company or for the payment of which the limited company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company. As to payment of debts owing before date of transfer.

16. Notwithstanding the avoidance of the said memorandum and articles of association all certificates (until cancelled under the powers of this Act) and all sales transfers and dispositions heretofore made or executed under them before the date of transfer for and with respect to any shares in the limited Certificates &c. to remain in force.

A.D. 1911. company shall remain in full force and continue and be available in all respects as if the said memorandum and articles of association had not been avoided.

Books &c.
continued
evidence.

17. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance.

Officers of
limited
company to
continue.

18. Thomas Douglas the managing director of the limited company and all officers and servants of the limited company who were in office immediately before the date of transfer shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto attaching until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Present
registers of
members to
be continued.

19. The books kept by the limited company for entering the names and designations of the members thereof shall continue to be kept for similar purposes by the Company and shall be taken and considered as the register of shareholders required to be kept by the Companies Clauses Consolidation Act 1845 until a new register is provided by the Company.

CAPITAL BORROWING POWERS &c.

Capital.

20. The capital of the Company shall be thirty thousand pounds being the aggregate of the following amounts:—

- (1) Nine thousand pounds divided into nine hundred ordinary shares of ten pounds each which is in this Act called the "original ordinary capital":
- (2) Three thousand pounds divided into three hundred preference shares of ten pounds each which is in this Act called the "A preference capital":
- (3) Three thousand pounds divided into three hundred preference shares of ten pounds each which is in this Act called the "B preference capital":

- (4) Fifteen thousand pounds which is in this Act called "additional capital" and so much thereof as is raised by the creation and issue of ordinary shares or stock is in this Act called "additional ordinary capital" and so much thereof as is raised by the creation and issue of preference shares or stock is in this Act called "C preference capital." A.D. 1911.

21.—(1) The shares in the original ordinary capital the A preference capital and the B preference capital shall be vested in the several persons who immediately before the date of transfer were the registered holders of shares in the limited company one ordinary share being substituted for each ordinary share of the limited company one A preference share being substituted for each A preference share of the limited company and one B preference share being substituted for each B preference share of the limited company. Vesting of shares in original capital in present shareholders.

(2) Every share so vested shall be deemed to be fully paid up and shall be subject and liable to the same trusts powers provisions declarations agreements charges liens encumbrances and liabilities (except so far as the same may be altered or varied by this Act) as immediately before the date of transfer affected the shares or share for which the same is substituted and shall be dealt with applied and disposed of accordingly and so as to give effect to and not revoke any agreement deed or other instrument or any testamentary disposition of or affecting such shares or share and every such agreement deed or other instrument or testamentary disposition shall take effect with reference to the whole or a proportionate part as the case may be of the shares substituted therefor and trustees executors and administrators and all other holders in any representative or fiduciary capacity of any shares in the limited company in exchange for which any shares of the Company are issued under this Act are hereby authorised and required to accept the shares of the Company so to be issued to them pursuant to the provisions of this Act and to hold dispose of or otherwise deal with the same in all respects as they might have held disposed of or otherwise dealt with the shares in the limited company for which such shares of the Company are substituted.

22. The Company shall call in and cancel the existing certificates of shares in the limited company and issue in exchange for those certificates to the respective proprietors Cancellation of existing certificates and issue of

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A.D. 1911. new certificates. thereof free of charge certificates in the form and under the conditions prescribed by the Companies Clauses Consolidation Act 1845 but no holder of any such existing certificate of shares shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the existing certificate for which such new certificate is to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof and shall have given such indemnity as the directors may require and if any such holder neglects or omits to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address appearing in the shareholders' address book the Company may retain any dividend declared or made payable upon or in respect of the shares so held by him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the Company to have been lost or destroyed and an indemnity against any claim in respect of such lost or destroyed certificate is given to the satisfaction of the directors of the Company.

Power to raise additional capital.

23. The Company may from time to time raise additional capital not exceeding in the whole fifteen thousand pounds by the creation and issue at their option of new ordinary shares or new preference shares or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of fifteen thousand pounds Provided also that the Company shall not raise by the issue of preference shares a greater amount of such additional capital than seven thousand five hundred pounds.

Profits of Company limited.

24. Except as by this Act otherwise provided the profits of the Company to be divided among the shareholders in any year shall not exceed the rates hereinafter set forth and shall be appropriated and applied in the order following (that is to say):—

- (1) On the A preference capital the rate of five pounds per annum in respect of every one hundred pounds of such capital:

- (2) On the B preference capital the rate of four pounds ten shillings per annum in respect of every one hundred pounds of such capital: A.D. 1911.
- (3) On the C preference capital such rate not exceeding five pounds per annum as shall be determined by the Company at the time and as a condition of the issue in respect of every one hundred pounds of such capital:
- (4) On the original ordinary capital and the additional ordinary capital the rate of five pounds per annum in respect of every one hundred pounds of such capitals respectively:
- (5) On the A preference capital and the original ordinary capital the further rate of two pounds ten shillings per annum in respect of every one hundred pounds of such capitals respectively:
- (6) On the original ordinary capital and the additional ordinary capital the further rate necessary to make up the total rates to ten pounds and seven pounds respectively in respect of every one hundred pounds of such capitals respectively which total rates are in this Act referred to as "the standard rate of dividend":

Provided that if in any year or (if the Company declare a dividend half-yearly) in any half-year the funds of the Company applicable to payment of dividends shall when applied to such payment in the order by this section prescribed be insufficient to pay the full amount of dividend at the authorised rate on any two classes of capital which according to such prescribed order are to rank together a proportionate reduction shall be made in the dividend on each such class.

25.—(1) All shares created under the powers of the section of this Act of which the marginal note is "Power to raise additional capital" shall be issued in accordance with the provisions of this section. New shares to be sold by auction or tender.

(2) All shares so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

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- (a) Notice of the intended sale shall be given in writing to the clerks of the urban district council of Sidmouth and of the rural district council of Honiton and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply :
- (b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be :
- (c) No lot offered for sale shall comprise shares of greater nominal value than one hundred pounds :
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum and in the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid :
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares which have been so offered for sale and are not sold may be offered at the reserve price to the holders of shares of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas or electricity supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided that in the case of an offer to holders of shares if the aggregate amount of shares applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares which have been offered in accordance with subsection (2) or with subsections (2) and (3) and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

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(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective shares sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares.

26. In the event of the winding up of the Company the surplus assets shall be applicable first to the repayment to the holders of the A preference capital the amount paid up thereon and secondly to the repayment to the holders of the B preference capital the amount paid up thereon and thirdly to the repayment to the holders of the C preference capital the amount paid up thereon before any amount is repaid to the holders of the ordinary capital of the Company but the holders of the said preference capitals shall not be entitled to any further participation in such surplus assets.

Distribution
of surplus
assets in case
of winding
up.

27. Where in any year the dividend which the Company may be entitled to pay on the ordinary capital of the Company shall exceed the standard rate by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the limited company existing at the date of transfer may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rates on the ordinary capital of the Company and

Power to
create re-
serve fund.

A.D. 1911. save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

Power to
create a
special pur-
poses fund.

28.—(1) The directors of the Company may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Company including premiums to a fund to be called “the special purposes fund.”

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or incorporated accountant being the auditor of the Company or appointed for the purpose by the Board of Trade shall approve as being—

(a) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(b) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

Application
of excess of
profits.

29. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividends at the authorised rates on the preference capital and the ordinary capital of the Company the excess shall be carried to the credit of the divisible profits of the undertaking for the next following year Provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required

to pay one year's dividend at the authorised rates on the preference and the ordinary capital. A.D. 1911.

30. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole (inclusive of the sum of five thousand pounds already borrowed by the limited company) one-third part of the amount of the capital of the Company which at the time of borrowing has been created or raised by the Company under the powers or in pursuance of the provisions of this Act but no sum shall be borrowed in respect of any capital so created or raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the shares at the time issued together with the premium (if any) realised on the sale thereof have been fully paid up. Power to borrow.

31. All mortgages bonds and debentures granted or issued by the limited company before and subsisting at the date of transfer shall during the continuance of such mortgages bonds and debentures and subject to the terms thereof have priority over all mortgages and debenture stock granted or created and issued by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company. Priority of existing mortgages.

32. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than two thousand pounds in the whole. Arrears to be enforced by appointment of a receiver.

33. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the date of transfer created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were Debenture stock.

A.D. 1911. authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of mortgages over other debts.

34. All moneys already raised by the limited company or to be raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by the Company after the date of transfer Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to or vested in the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

Receipt in case of persons not *sui juris*.

35. If any money is payable to a shareholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Application of moneys.

36. All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend but in any case where a power to raise money by borrowing or the amount which the Company may carry to any reserve or other fund is made proportionate to the capital any such premium shall for such purpose be reckoned as part of the capital.

MEETINGS &c.

First and subsequent ordinary meetings.

37. The first ordinary meeting of the Company shall be held within six months of the date of transfer and the subsequent ordinary meetings of the Company shall be held once in every year in the month of February or at such other time as shall be appointed for that purpose by an order of the directors.

Quorum of general meetings.

38. The quorum of all general meetings of the Company shall be five shareholders present in person or by proxy holding

in the aggregate not less than one twentieth of the issued capital of the Company. A.D. 1911.

39. The prescribed scale of voting shall be one vote for every ordinary share and one vote for every two preference shares. Scale of voting.

40. The directors may in any year without calling a meeting of shareholders for the purpose declare interim half-yearly dividends out of the then ascertained profits of the Company Provided that the amount of any interim half-yearly dividends so declared shall not exceed in any half-year one half of the amount of the standard rates of dividends respectively. Interim dividend.

41. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the district within which the Company's principal place of business is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend. Closing of transfer books previous to declaring interim dividend.

DIRECTORS AND AUDITORS.

42. The number of directors shall be three but the Company may vary the number provided that the number be not at any time more than five nor less than three. Number of directors.

43.—(1) The qualification of a director shall be the possession in his own right of not less than ten shares. Qualification of directors.

(2) If any director shall be made bankrupt or shall become lunatic or of unsound mind or shall neglect to attend the meetings of directors for six months (unless such neglect to attend be occasioned by illness or any other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant and thenceforth he shall cease from voting or acting as a director.

(3) The continuing directors may act notwithstanding any vacancy in the number of directors.

(4) No person shall be disqualified from becoming or continuing a director of the Company by reason of his or any partner

A.D. 1911. of his being or becoming interested in any contract with the Company either in his own behalf or as a member of any other company corporation local authority or partnership or by reason of his holding any office or place of trust or profit under the Company but no such person shall as a director vote in respect of any question as to any such contract or the remuneration attached to any such office or place of trust or profit.

Notice of
candidature
for office of
director.

44. Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected a director of the Company in place either of a director retiring by rotation or of a director dying refusing to act or ceasing to be qualified or being disqualified to act unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary of the Company or left at the office of the Company fourteen days at least before the day of election.

Quorum of
directors.

45. The quorum of a meeting of directors shall be two.

First di-
rectors and
election of
directors.

46. Thomas Douglas Thomas Henry Stocker Pullin and George Pidsley shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the date of transfer At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect new directors to supply the place of those not continued in office the directors appointed by this Act being if they continue qualified eligible for election and at the ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are duly elected in their stead.

For pro-
tection of
Thomas
Douglas.

47. If Thomas Douglas shall cease to hold the office of director or managing director of the Company otherwise than by reason of his having become disqualified or having died or resigned the Company shall pay to him compensation in respect

of loss of such office or offices on the basis of the salary and emoluments thereunto attaching and of the other terms and conditions on which the said Thomas Douglas held such office or offices under the limited company on the first day of January 1911 and the amount of such compensation shall failing agreement be determined by arbitration in accordance with the provisions of the Arbitration Act 1889. A.D. 1911.

48.—(1) The prescribed number of auditors shall be one unless the number be increased to two by an order of a general meeting and any such auditor shall be a member of the Institute of Chartered Accountants or the Society of Incorporated Accountants and Auditors. Auditors.

(2) It shall not be necessary for any auditor to hold shares in the Company.

SUPPLY OF GAS WORKS &C.

49. The limits within which the Company may supply gas under this Act (in this Act called "the limits of supply") shall be and include the parish and urban district of Sidmouth and the parishes of Salcombe Regis and Sidbury all in the county of Devon. Limits for supply of gas.

50. Subject to the provisions of this Act the Company may upon the lands described in Part I. of the First Schedule to this Act maintain and continue the existing gasworks of the limited company and may upon those lands and upon the lands described in Part II. of the First Schedule to this Act erect make maintain alter improve enlarge extend renew or discontinue additional and other gasworks retorts gasholders receivers drains sewers mains pipes machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas for public and private purposes in bulk or otherwise for lighting heating or motive power within the limits of supply and for the conversion or utilisation and distribution of materials used in and about the manufacture of gas and of residual products resulting from such manufacture and may make store and supply gas accordingly and the Company may manufacture sell provide and deal in coke coal-tar asphaltum ammoniacal liquor oil and all other refuse or residuary products arising remaining produced by or obtained from the manufacture of gas by them or the Powers as to construction and maintenance of gasworks &c.

A.D. 1911. materials used therein and may manufacture produce and sell such articles as can be produced from and by means of the several matters and things aforesaid.

Power to
lay pipes &c.
for ancillary
purposes.

51. The Company may lay down place repair alter remove and renew mains pipes culverts and other apparatus within the limits of supply for the purpose of procuring conducting or disposing of any oil or other material used by them in or resulting from the manufacture of gas or any residual products thereof or for any other purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when so laid shall so far as applicable for the purposes of this section extend and apply mutatis mutandis to and for the purposes thereof.

Dividend
dependent
on price
charged.

52. The standard price to be charged by the Company for gas supplied by them shall be four shillings per thousand cubic feet Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary capital as follows:—

In respect of any year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by five shillings on every one hundred pounds of original ordinary capital and by three shillings and sixpence on every one hundred pounds of additional ordinary capital and so in proportion for any fraction of one hundred pounds:

And in respect of any year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate by five shillings on every one hundred pounds of original ordinary capital and by three shillings and sixpence on every one hundred pounds of additional ordinary capital and so in proportion for any fraction of one hundred pounds.

53.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the limits of supply through any other kind of meter or by any other method of supply.

A.D. 1911.
Charge for
gas supplied
by means of
prepayment
meters.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove. The said charge shall include the providing letting fixing repairing and maintenance of the meters and fittings and the cost of collection and other costs incurred by the Company in connection with the meters and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

54. The prescribed number of candles shall be not less than fourteen.

Quality of
gas.

55. The testing place which has been provided by the limited company at their works shall be the prescribed testing place for the purposes of the Gasworks Clauses Act 1871.

Testing
place.

56.—(1) The quality of the gas supplied by the Company shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871.

Testing
quality.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the metropolitan argand

A.D. 1911. No. 2 the photometer shall be the bar photometer or the table photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Company or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Company shall provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

Pressure of
gas.

57.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied The Company shall afford to the examiner all reasonable facilities for making the test.

Saving as to
penalties.

58. No penalty shall be incurred by the Company for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

Company to
pay interest
on money
deposited as
security for
gas meter
&c.

59. If any person is required by the Company to give to them security for any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the Company shall pay interest at the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands as security.

Power to
supply gas
fittings &c.

60.—(1) The Company may sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes

and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon. A.D. 1911.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be.

(3) All such fittings let for hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

(4) The Company shall only be entitled to the privileges and exemptions conferred by this section in respect of such fittings as shall be marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

61. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises. Power to enter premises and remove fittings.

62. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper repair and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer The Power to require use of anti-fluctuators for gas engines.

A.D. 1911. Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

Period of
error in
defective
meters.

63. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

Supply of
gas where
consumer
has separate
supply.

64. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand or continue to receive from the Company a supply of gas for any premises for which he has at the same time a supply of gas from an installation other than that of the Company or a supply of electricity unless he shall have agreed to pay to the Company such minimum annual sum as will give to them a reasonable return on the capital expenditure and will cover other standing charges incurred by them in order to meet the possible maximum demand for those premises and the sum to be so paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889.

Gas con-
sumers to
give notice
to Company
before re-
moving.

65. At least twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company.

66. If a person requiring a supply of gas for any premises occupies or has occupied other premises at which gas is being or has been supplied to him by the Company and has not paid all money due from him to the Company for the supply of gas or for the rent of a meter they may refuse to furnish to him a supply of gas until he pays the same.

A.D. 1911.
Power to
refuse a sup-
ply to per-
sons in debt
for other
premises.

67. The Company may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or interfere with any street beyond the limits of supply.

Company
may enter
into con-
tracts.

68. The Company may take hold and use patent rights or licences and authorities (not being exclusive) under any letters patent for the use of any invention relative to the manufacture conversion utilisation or distribution of gas and residual products.

Power to
hold licences
under letters
patent.

69. For the protection of the Sidmouth Railway Company (hereinafter in this section referred to as "the owning company") and of the London and South Western Railway Company (hereinafter in this section referred to as "the working company") the following provisions shall unless otherwise agreed apply and have effect:—

For protec-
tion of Sid-
mouth and
London and
South West-
ern Railway
Companies.

- (1) All works relative to the supply of gas executed in pursuance of this Act or of any Act incorporated therewith and involving interference with or in any way affecting the railways bridges roads approaches level crossings works lands and property of the owning company (hereinafter referred to as "the railway") and (except in the case of emergency) all works of maintenance repair renewal and removal relative to the supply of gas and involving such interference and affection and not being maintenance repairs or renewals of existing works of which the character and position are not altered (the said works executed in pursuance of this Act or of any incorporated Act and the said works of maintenance repair renewal or removal being hereinafter referred to as "the said

A.D. 1911. works") shall be done under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer of the working company (hereinafter referred to as "the engineer") and according to plans to be previously submitted to and approved by the engineer in writing within twenty-one days after such submission or in the event of disapproval then in such manner as may be determined by arbitration. Provided that if the engineer shall not so signify his approval or disapproval of such plans within twenty-one days after they shall have been submitted to him he shall be deemed to have approved thereof and if the engineer shall refuse or neglect to superintend the execution of the said works the Company may execute the same without his superintendence:

(2) The said works shall be done by and at the expense of the Company who shall restore and make good to the reasonable satisfaction of the engineer any portion of the railway which may be disturbed or interfered with and the said works shall be carried out so as to cause as little injury as may be to the railway and so as not to cause any interference with the passage or conduct of traffic thereover nor alter the existing level of any roadway over or under any bridge or prevent any improvement or widening of the railway or of any bridge or the introduction of side openings to such bridge. Provided that where there is not sufficient space on any bridge to lay any mains or pipes between the road surface and the structure of any such bridge the working company may require such mains or pipes to be carried outside the structure of any such bridge and shall afford all reasonable facilities for the purpose subject to the conditions hereinbefore contained as far as the same may be applicable thereto:

(3) The Company shall give twenty-one clear days' notice to the working company before commencing any work affecting the railway except in cases of emergency and then so soon as is possible after the beginning of the work or the necessity for the same shall have arisen:

- (4) The Company shall bear and on demand pay to the working company all reasonable costs of the superintendence by the engineer of the said works and all reasonable costs of watching lighting and protection of the railway during the carrying out of the said works so far as such costs may in case of difference be determined by the arbitrator to have been necessary: A.D. 1911.
- (5) If any injury or interruption of traffic shall arise from or be in any way owing to the construction user or failure of the said works the Company shall make full compensation to the owning company and or the working company as the case may be in respect thereof and the amount of such compensation shall failing agreement be determined by arbitration:
- (6) If at any time the owning company and or the working company require to effect any repair renewal widening alteration or extension of the railway at any place where the said works may have been constructed in over upon across or under the railway the Company shall afford to the owning company and or the working company all reasonable and proper facilities for the purpose:
- (7) Any dispute or difference which may arise between the Company and the owning company and or the working company as the case may be touching any of the matters referred to in this section shall be settled by arbitration under the Arbitration Act 1889 by an engineer to be appointed failing agreement by the president of the Institution of Civil Engineers on the application of any of the parties.

70. In executing the works relative to the supply of gas by this Act authorised so far as they affect streets roads and bridges under the jurisdiction of the Sidmouth Urban District Council (in this section referred to as "the council") all of which streets roads and bridges are in this section comprised in the term "street" the following provisions for the protection of the council shall unless otherwise agreed between the council and the Company have effect in addition to the other provisions for their protection or benefit in this Act or in the Gasworks Clauses Act 1847 contained (that is to say):—

For protection of Sidmouth Urban District Council.

A.D. 1911.

- (1) All pipes to be laid in along or across any street shall be laid in such position in or at the side thereof or in or under the footpath or pavement and at such depths as the council in writing under the hand of their surveyor may reasonably direct:
- (2) The Company shall not open a greater continuous length of street than one hundred yards and shall not leave a less space than fifty yards between any two consecutive openings and they shall not open a greater length of street than fifty yards at any place where only one cart can pass at the side of such opening or more than one hundred yards where only two carts can pass at the same time:
- (3) In the application of the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the notice required by section 8 of that Act shall not be less than seven days instead of three days but this provision shall not apply in cases of emergency in which case the earliest possible notice shall be given after the beginning of the work or the necessity for the same shall have arisen:
- (4) Where the Company shall have opened or broken up any street they shall complete the work and reinstate and make good the street in such manner as the council ordinarily repair the street so broken up to the reasonable satisfaction of the council:
- (5) Nothing in this Act contained shall interfere with the right of the council to alter the level of deviate or improve in any manner they think fit any street in or along which any pipes of the Company shall have been laid and the Company shall on the expiration of fourteen days after receiving notice in writing under the hand of the clerk or surveyor to the council so to do proceed to alter the position of any such pipes in the manner and within such reasonable time as is prescribed by such notice or as in case of difference shall be determined by arbitration in the manner hereinafter prescribed and the expenses of or connected with any such alteration shall be paid to the Company by the council:

(6) All works of the Company as far as they affect any street shall be so executed by the Company so far as is reasonably practicable as not to stop or interfere with the traffic: A.D. 1911.

(7) Any question or difference arising under this section between the Company and the council shall be settled by arbitration under the Arbitration Act 1889 by an engineer or other fit person to be agreed upon between the council and the Company and failing agreement to be appointed by the president of the Institution of Civil Engineers on the application of either party.

SUPPLY OF ELECTRICITY &c.

71. The area within which the Company may supply electricity under this Act (in this Act called "the area of supply") shall be the parish and urban district of Sidmouth in the county of Devon and the said parish and urban district shall be deemed to be the area of supply within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1889 and the Company may supply electricity within the area of supply for all public and private purposes. Area for supply of electricity.

72.—(1) The Company may appropriate and use for the purposes of the electricity undertaking the land vested in the Company by virtue of this Act and described in the Second Schedule to this Act and may thereon erect maintain work and use a station or stations for producing and generating transforming storing and distributing electricity with all such buildings engines batteries dynamos accumulators and other plant machinery apparatus works and conveniences as may be necessary or suitable for those purposes and may produce generate transform store use and supply such electricity accordingly. Power to appropriate lands and erect generating stations.

(2) The Company may appropriate and use for the said purposes any other lands vested in them by virtue of this Act or any lands to be acquired by them but they shall not use any such lands for the purpose of constructing a generating station except with the consent of the Board of Trade and the Board of Trade shall not in any case give such consent except subject to and in accordance with the provisions of section 2 of the Electric Lighting Act 1909.

A.D. 1911.

Power to
supply en-
gines motors
fittings &c.

73. The Company may purchase provide supply sell and let on hire and may fix set up alter repair remove but shall not manufacture engines machines motors accumulators cables conductors services wires tubes pipes insulators distributing cut-out and other boxes switches transformers lamps meters fittings and other apparatus and appliances used for or in connection with the production transmission storage transformation measuring regulating distributing and use of electricity for lighting and other purposes whether public or private or for converting the same into motive power heat or otherwise and may provide all materials and do all work necessary or proper in that behalf and may demand take and recover such remuneration in money or such rents and charges for and may make such terms and conditions with respect to the supply sale letting fixing setting up altering repairing and removing of such articles and things aforesaid and for securing (both as regards the consumer and third parties) their safety and return to the Company as may be agreed on between the Company and the person to or for whom the same are sold supplied let on hire fixed or set up as aforesaid.

Power to
break up
streets not
repairable by
local author-
ity.

74. Subject to the provisions of the principal Acts the Company may break up for the purposes of the electricity undertaking the following streets not repairable by the local authority (that is to say):—

Bickwell Road Ascerton Road Elysian Fields Road Coburg Terrace the road or drive through the Knowle Grounds from Station Road to Broadway Lane and Peasland Road.

Mains &c.
to be laid
down.

75. Section 21 subsection (1) of the schedule to the Electric Lighting (Clauses) Act 1899 in so far as it specifies a period within which the Company shall lay down distributing mains shall not apply to the Company but the Company shall before the expiration of three years after the passing of this Act without being required to do so lay down reasonably suitable and sufficient distributing mains for the purposes of general supply throughout the streets mentioned in the Third Schedule to this Act Provided that the Board of Trade may from time to time extend such period for such further periods as they may think fit Provided further that the Board of Trade may on the expiration of such period or of any such extended period as aforesaid if such mains mentioned in the Third Schedule to this Act are not then laid or if evidence is not forthcoming of the bonâ

fide intention of the Company to lay such mains on the representation of the local authority of the district revoke the powers of this Act in regard to the supply of electricity as to the whole or part of the area of supply and make such order as to payment by the Company of the costs of such representation as they think fit. A.D. 1911.

76. The maximum prices to be charged by the Company for electricity supplied by them except to public lamps shall be subject to alteration as in the schedule to the Electric Lighting (Clauses) Act 1899 provided be that stated in that behalf in the Fourth Schedule to this Act. Maximum prices.

77. If within a period of three years after the passing of this Act or such extended period as the Board of Trade may prescribe under the section of this Act whereof the marginal note is "Mains &c. to be laid down" the Company shall have failed bonâ fide to commence to exercise the powers of this Act with reference to the supply of electricity the additional capital which the Company are by this Act authorised to raise shall be reduced from the sum of fifteen thousand pounds to the sum of seven thousand pounds and until the Company so commence to exercise the said powers they shall not create or issue any greater amount than seven thousand pounds of the said additional capital. Reduction of capital if electricity powers not exercised.

78. The Company shall give to the London and South Western Railway Company fourteen days' notice in writing of any application to be made by the Company to the Board of Trade under the provisions of subsection (b) of section 10 of the Electric Lighting (Clauses) Act 1899 for the consent of the Board of Trade to the placing of any electric lines above ground over any street or over or under any bridge owned or repairable by the Sidmouth Railway Company or the London and South Western Railway Company. For further protection of London and South Western Railway Company.

MISCELLANEOUS.

79. Separate capital and revenue accounts shall be kept of the gas undertaking and the electricity undertaking. Separate accounts of gas and electricity undertakings.

The gas undertaking and the electricity undertaking respectively shall be duly accredited and debited with the receipts and payments exclusively attributable thereto.

A.D. 1911.

The Company shall out of the capital moneys raised under this Act carry to the credit of the capital account of the gas undertaking the value of all land acquired for the purposes of that undertaking and used for the purposes of the electricity undertaking.

The expenses of direction and management and any expenses common to both the gas undertaking and the electricity undertaking shall be from time to time apportioned between them as nearly as conveniently practicable in proportion to the amount of capital for the time being expended on the gas undertaking and the electricity undertaking respectively.

Power to
purchase
lands by
agreement.

80. The Company may for the purposes of the undertaking purchase and take (by agreement but not otherwise) and may hold in addition to the other lands which they are by this Act authorised to hold any lands and hereditaments not exceeding in the whole two acres which they may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products and generating electricity except the lands authorised to be so used by this or any other Act or Order affecting the undertaking.

Dwelling-
houses for
persons in
Company's
employ.

81. The Company may purchase or take on lease houses cottages and buildings for persons in their employ and offices showrooms and other buildings for the purposes of the undertaking and may erect maintain and let any of such buildings upon any lands for the time being belonging or leased to the Company.

Power to
sell and lease
lands.

82. Subject to the provisions of the Lands Clauses Consolidation Act 1845 the Company may sell or let on lease for such periods as they think fit any lands or property for the time being belonging to them and which may not at the time be required for the purposes of the undertaking and may retain and hold sell and dispose of any interest in or reversion to any lands or property so let and any such sale disposal or lease may be for such consideration and subject to such reservations restrictions and provisions and generally upon such terms and conditions as the Company think fit.

Power to
lay pipes in
streets or

83. The Company may on the application of the owner or occupier of any premises abutting on or being erected in any

street or road laid out but not dedicated to public use where such premises are within the limits of supply or within the area of supply respectively lay down take up alter relay repair or renew in across or along or out of such street or road such mains cables wires pipes and apparatus as may be requisite or proper for the supply of gas or electricity respectively to such premises as aforesaid and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and the provisions of the schedule to the Electric Lighting (Clauses) Act 1899 so far as they are applicable shall extend and apply mutatis mutandis to the exercise of the powers of this section in regard to the supply of gas and electricity respectively.

A.D. 1911.
 —
 roads not
 dedicated to
 public use.

84. A notice to the Company from a consumer for the discontinuance of a supply of gas or electricity shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Notice to
 discontinue
 supply of
 gas or elec-
 tricity.

85. Any notice to be served by the Company on a person supplied with gas or electricity shall be sufficiently authenticated by the signature of the secretary of the Company or other officer of the Company for the time being authorised in writing by the directors being affixed thereto in writing or by stamp or if it be a notice to pay any charge in respect of a supply of gas or electricity or of gas or electrical fittings or appliances by the name either of the secretary or such other officer as aforesaid being affixed thereto in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Authentica-
 tion and
 service of
 notices by
 Company.

86. Where the payment of more than one sum by any person is due under this Act any summons or warrant issued for the purposes of this Act in respect of that person may

Several sums
 in one sum-
 mons.

[Ch. lxviii.] *Sidmouth Gas and Electricity* [1 & 2 Geo. 5.]
Act, 1911.

A.D. 1911. contain in the body thereof or in a schedule thereto all the sums payable by him.

Penalties not cumulative.

87. Penalties imposed on the Company for one and the same offence by several Acts of Parliament shall not be cumulative and for such purpose this Act and the Acts incorporated herewith shall be deemed several Acts.

Recovery of penalties.

88. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of demands.

89. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Repeal of Order of 1874.

90. The Order of 1874 and so much of the Gas and Water Orders Confirmation Act 1874 as relates thereto are hereby repealed.

Copy of Act to be registered.

91. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than a memorandum or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding-up in England.

92.—(1) If the urban district council of Sidmouth (in this section called “the council”) shall introduce in the next session of Parliament a Bill for an Act to empower the council to purchase the undertaking of the Company and shall *bonâ fide* promote the same the Company shall not oppose such Bill except in so far as may be necessary in order to secure the insertion therein of provisions to protect their interests with respect to such purchase and for that purpose the Company shall be at liberty to petition either or both Houses of Parliament and to appear on such petition by council agents and witnesses if they think fit.

A.D. 1911.

As to purchase of undertaking by urban district council of Sidmouth.

(2) If the council obtain an Act authorising such purchase they shall give notice of their intention to purchase within six months after the passing of such Act and thereupon the Company shall sell and transfer and the council shall purchase the undertaking of the Company subject to all their then existing obligations and liabilities other than mortgage or debenture debts.

(3) Any such sale and purchase shall be for such price or consideration and on and subject to such terms and conditions as may be agreed upon between the Company and the council or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression “the promoters of the undertaking” shall mean the council and the expression “lands” shall mean the undertaking of the Company.

(4) In addition to the amount to be paid by the council to the Company under the foregoing provisions of this section the council shall pay to the Company the taxed costs charges and expenses of obtaining this Act and of procuring any amendment of the Bill to be introduced by the council and also of and incident to the transfer of the undertaking and the winding-up of the Company.

(5) The council shall also pay compensation to Thomas Douglas as director or managing director of the Company and to any other officers and servants in the regular employment of the Company who shall not be retained by the council in the same or similar office or employment and at the salary and on the terms and conditions in and on which they respectively

A.D. 1911. were employed by the Company on the first day of January one thousand nine hundred and eleven in respect of any loss of office or diminution of salary or income by reason of the transfer of the undertaking of the Company to the council the amount of such compensation in default of agreement to be determined by arbitration as aforesaid and the said Thomas Douglas and any other officer or servant who has been not less than ten years in the employment of the Company shall not lose his right to compensation as aforesaid by reason of his refusal to accept employment under the council nor shall any such refusal be taken into account as a ground for reducing the amount of compensation to be paid.

(6) If the council shall give notice for such Bill as aforesaid in October or November one thousand nine hundred and eleven the Company shall not except with the consent of the council and save as hereinafter provided raise any capital in pursuance of this Act during the promotion of such Bill Provided that the Company shall be entitled at any time after the first day of January one thousand nine hundred and twelve to raise by borrowing such sum or sums as may be necessary for carrying on the undertaking in the ordinary course of business.

(7) For the purposes of this section the expression "the undertaking of the Company" includes all the works engines mains pipes and machinery lands and buildings plant fixed and movable and all other the real and personal property assets and effects of whatever nature and all the rights powers and privileges vested in or belonging to or had or enjoyed by the Company at the date of transfer of the undertaking of the Company to the council save and except the books and papers relating exclusively to the shareholders and constitution of the Company Provided that the Company shall be entitled to retain or shall be paid by the council in addition to the price or consideration for the transfer of the undertaking such a sum as shall be necessary to enable the Company to pay dividends at the authorised rates from the date of the last payment of such dividends to the date of the transfer of the undertaking to the council.

Costs of Act. **93.** All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

The SCHEDULES referred to in the foregoing Act. A.D. 1911

FIRST SCHEDULE.

LAND FOR GASWORKS.

PART I.

A piece of land now held by the limited company containing by admeasurement 1 acre 0 roods 28 poles or thereabouts situate in the district of the urban district council of Sidmouth formerly part of a field called "The Ham" bounded on or towards the north by property belonging to Horatio Fenner Russell on the south partly by the Esplanade and partly by hereditaments belonging to Joseph Augustin Bellinger on the west partly by Ham Lane (formerly known as Marsh Lane) and partly by the Girls School and on the east partly by the Drill Hall and partly by the said field called "The Ham" which said piece of land together with the buildings thereon is known as the Sidmouth Gasworks.

PART II.

A piece of land situate in the parish and urban district of Sidmouth in the county of Devon belonging to the limited company and containing by admeasurement 30 perches or thereabouts bounded on the north-west by Sid Road on the north-east by Ham Lane and on the south by other property of the limited company.

SECOND SCHEDULE.

LAND FOR GENERATING STATION.

A piece of land situate in the parish and urban district of Sidmouth in the county of Devon belonging to and in the occupation of the limited company containing by admeasurement 35 square perches or thereabouts bounded on the north by land and premises belonging or reputed to belong to and in the occupation of the limited company on the east by Ham Lane on the south by York Street and on the west by Sid Road.

A.D. 1911.

THIRD SCHEDULE.

LIST OF STREETS throughout which the Company are to lay down reasonably suitable and sufficient distributing mains for the purposes of general electric supply within the period specified in this Act.

Esplanade.
Fore Street.
Old Fore Street.
High Street.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electromotive force of one volt during one hour.

SECTION 1.

Where the Company charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Company charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Company under the Board of Trade Regulations.

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